



Paul Bzeta <paulbzeta@gmail.com>

FOI Request 2025-078 – Follow-up and Request for Clarification2 messages

Paul Bzeta <paulbzeta@gmail.com>

Wed, Apr 15, 2026 at 8:00 AM

To: Lyndsay Osterlund <losterlund@rdek.bc.ca>

Cc: Tina Hlushak <thlushak@rdek.bc.ca>

Bcc: Paul Bzeta <paul@kickervideo.com>, Robert Dickson <drdickson7776@gmail.com>

Dear Ms. Osterlund and Ms. Hlushak,

Please find attached a follow-up letter regarding the records released on April 13, 2026 in response to FOI Request No. 2025-078.

The letter outlines several observations arising from a detailed review of the disclosed materials, along with specific requests for clarification relating to the completeness of the response and the underlying decision-making record.

I would appreciate your review of the attached and your response at your earliest convenience.

Please confirm receipt of this email.

Thank you for your time and attention.

Sincerely,

Paul Bzeta

Edgewater BC

On Tue, Apr 14, 2026 at 9:41 AM Lyndsay Osterlund <losterlund@rdek.bc.ca> wrote:

Hi Paul,

Please see the following attachments related to your request for copies of records:

- Release Letter; and
- Copies of requested records from revised scope

Cheers,

Lyndsay

Corporate Services Assistant

Regional District of East Kootenay

19-24th Avenue South

Cranbrook, BC V1C 3H8



FOI Request 2025-078 – Follow-up and Request for Clarification.pdf

131K

Tina Hlushak <thlushak@rdek.bc.ca>
To: "paulbzeta@gmail.com" <paulbzeta@gmail.com>

Fri, Apr 17, 2026 at 4:16 PM

Good afternoon Paul,

Thank you for your letter dated April 15, 2026, regarding the release of records responsive to your Freedom of Information request 2025-078. I understand that you remain dissatisfied with the records provided and that, in summary, you are seeking records relating to the rationale, analysis, and decision-making process associated with the inclusion of Spur Valley within the proposed Edgewater Commercial Space Service Establishment service area.

Section 339(1)(b) of the *Local Government Act* (Act) requires that an establishing bylaw for a regional district service must define the boundaries of the service area. This means the bylaw must clearly identify the geographic area that will receive and pay for the service, so that service delivery and taxation are transparent and properly aligned. Key aspects of section 339(1)(b) include the following:

- the service area must be clearly defined in the establishing bylaw;

- the provision applies to regional districts when establishing, amending, or reducing service areas;
- the participating area informs the applicable cost recovery methods under section 378 of Act; and
- certain services, such as regulatory services, emergency systems, and regional parks, may be subject to different or more flexible requirements under section 339(2).

This legislative requirement is intended to ensure that only those areas benefiting from a service are included for service and taxation purposes. The Act provides the legal authority for establishing and changing service area boundaries. However, it does not prescribe a specific substantive methodology for determining where a boundary must be drawn. The service area boundaries are developed through the service establishment process and are ultimately reflected in the service establishing bylaw, together with the applicable approvals for the proposed participating area.

In addition, for the purpose of obtaining Inspector of Municipalities approval, provincial staff generally require supporting information related to the proposed service establishing bylaw. This information typically includes:

- confirmation that the service is included in the adopted five-year financial plan;
- an operating budget showing anticipated revenues and expenditures for the next five years;
- a capital budget, where applicable;
- information regarding any significant tax impacts and related consultation undertaken;
- an assessment breakdown for properties within the proposed service area;
- the proposed method of cost recovery;
- the calculation used to establish the requisition limit;
- background information, including relevant staff or consultant reports;
- the method of participating area approval; and
- where applicable, any basis for exemption from participating area approval.

These requirements support provincial review of the bylaw, but they do not require a separate documented analysis or formal evaluation framework respecting the selection of service area boundaries.

With respect to your request, the determination of the proposed service area, including Spur Valley, was informed through collaborative discussion and mapping exercises undertaken as part of the service establishment process. As a result, there are no

additional records responsive to your request that set out a separate policy analysis, structured evaluation, formal decision-making framework, or specific evaluative criteria regarding the inclusion of Spur Valley to the proposed service area.

If you remain concerned about the broader issues of fairness, accountability, or transparency, you may wish to contact the Office of the Ombudsperson of BC, which is independent from local government and has authority to review complaints regarding public bodies.

The RDEK has responded to this matter through the applicable legislation of the *Local Government Act* and access to information processes, including compliance with the *Freedom of Information and Protection of Privacy Act* and oversight processes of the Office of the Information and Privacy Commissioner, where applicable. With these circumstances, we consider this matter concluded and will not be undertaking any further review or allocating additional administrative resources to it.

Thank you,

Tina Hlushak, Corporate Officer

Regional District of East Kootenay

19-24 Ave S, Cranbrook BC V1C 3H8

e. thlushak@rdek.bc.ca | p. 250-489-2791

w. www.rdek.bc.ca

From: Paul Bzeta <paulbzeta@gmail.com>

Sent: April 15, 2026 8:00 AM

To: Lyndsay Osterlund <losterlund@rdek.bc.ca>

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Subject: FOI Request 2025-078 – Follow-up and Request for Clarification

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